

HOUSE No. 201

The Commonwealth of Massachusetts

PRESENTED BY:

Christine P. Barber and Jennifer Balinsky Armini

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to bring child support home.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Christine P. Barber</i>	<i>34th Middlesex</i>	<i>1/10/2025</i>
<i>Jennifer Balinsky Armini</i>	<i>8th Essex</i>	<i>1/30/2025</i>
<i>Michelle L. Badger</i>	<i>1st Plymouth</i>	<i>10/19/2025</i>
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>3/17/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>2/23/2025</i>
<i>Tara T. Hong</i>	<i>18th Middlesex</i>	<i>3/17/2025</i>
<i>Mary S. Keefe</i>	<i>15th Worcester</i>	<i>3/4/2025</i>
<i>Samantha Montañó</i>	<i>15th Suffolk</i>	<i>3/17/2025</i>
<i>Tram T. Nguyen</i>	<i>18th Essex</i>	<i>3/17/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>3/18/2025</i>
<i>Steven Ultrino</i>	<i>33rd Middlesex</i>	<i>3/27/2025</i>

HOUSE No. 201

By Representatives Barber of Somerville and Armini of Marblehead, a petition (accompanied by bill, House, No. 201) of Christine P. Barber, Jennifer Balinsky Armini and others relative to child support enforcement. Children, Families and Persons with Disabilities.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to bring child support home.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 18 of the General Laws is hereby amended by striking section 18A
2 and inserting in place thereof the following new section:-

3 Section 18A. (a)(1). The department shall impose the sanction required by federal law on
4 any recipient of public assistance funded under Title IV-A of the Social Security Act who,
5 without good cause, does not cooperate with the IV-D agency specified in chapter 119A to
6 establish paternity or to establish, modify, or enforce a child support order on behalf of a child
7 for whom the recipient receives such public assistance.

8 (2) The department shall determine that a recipient has good cause for not cooperating
9 with the IV-D agency for purposes of this section if:

10 (A) The child was conceived as a result of incest or rape;

11 (B) Proceedings for the adoption of the child are pending or under consideration;

(C) Cooperation risks discouraging the noncustodial parent or other relatives of the child from maintaining a relationship with the child or providing emotional or other support;

(D) Cooperation risks physical or emotional harm to or retaliation against the child or the relative with whom the child resides; or

(E) Cooperation is otherwise not in the child's best interest.

SECTION 2. Section 2 of chapter 118 of the General Laws is hereby amended by inserting at the end of the first paragraph the following:-

Child support collected on behalf of a recipient of benefits under this chapter shall be paid to the family. In determining the family's countable income, the department shall disregard child support paid to the family that is below the monthly federal poverty level for the family size.

SECTION 3. Section 2 of chapter 119A of the General Laws is hereby amended by inserting at the end of subsection (b) the following:- Pursuant to Title IV, Part D of the Social Security Act, in the case of former recipients of assistance, the IV-D agency shall pay to the family all support payments collected, including payments on arrears assigned to the state and payments collected through federal tax refund offset.